

Combined Synopsis & Solicitation



United States Embassy, Botswana Gardening Services Procurement

Issued by:
American Consulate General
Regional Procurement Support Office
Gießener Straße 30
60435 Frankfurt am Main
Germany



May 4, 2026

Combined Synopsis and Solicitation

Solicitation Number 19GE5026Q0044

The U.S. Consulate General Frankfurt hereby provides the following Combined Synopsis and Solicitation for:

Landscape and Grounds Care Services for the United States Embassy Gaborone, Botswana on behalf of the Facilities office (FAC). All interested companies shall review the solicitation and provide their quotes in accordance with the specifications provided in this document. This solicitation may result in the issuance of a one-year contract with (4) options to extend.

B.1. Background:

This contract is required to maintain Mission gardens, which are regarded as the face of the Embassy, in a neat, presentable and acceptable state.

The contractor shall perform gardening services, including furnishing all labor, material, equipment and services, for the United States Embassy Gaborone. The Government will pay the Contractor the fixed price per month for standard services that have been satisfactorily performed.

B.2. Synopsis:

This is a combined synopsis/solicitation for commercial services prepared in accordance with FAR Part 12. This announcement constitutes the only solicitation. Offers are being requested, and a separate written solicitation will not be issued.

The solicitation number 19GE5026Q0044 is issued as a Request for Quotation (RFQ), for Landscape and Grounds Care Services.

This acquisition is not set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

B.3. Contract Type:

The Government intends to award a single, firm fixed-price Purchase Order to the responsible offeror whose offer is evaluated as the best value for the Government. The total price shall include all labor, equipment, delivery charges, materials, overhead, profit, insurance (see FAR 52.228-4 and 52.228-5), warranty, customs clearance, and all other expenses necessary to deliver the required supplies. No additional sums will be payable on account of any escalations in the cost of materials, equipment, or labor, or because of the Contractor's failure to properly estimate or accurately predict the cost or difficulty of achieving the results required by this contract. Nor will the contract price be adjusted on account of fluctuations in currency exchange rates. **For the purposes of this solicitation/RFQ and resulting award, the term "contract" stated herein, refers to the awarded Purchase Order.**

B.4. Period of Performance:

This ensuing contract shall be effective from the start date in the Notice to Proceed and continue for 12 months, with four (4) option years available for renewal. The

initial period of performance includes any transition period authorized under the contract.

B.5 Defense Base Act (DBA) Insurance:

The Department of Labor has **not** waived the DBA insurance for Botswana. Local Nationals, Foreign Nationals, United States citizens or residents and individuals hired in the United States, regardless of citizenship shall be required to obtain DBA insurance. Evidence of DBA insurance shall be submitted within 15 days of award. The DBA Insurance shall be obtained from any U.S. Department of Labor (DOL) authorized DBA insurance broker. A list of DOL-authorized insurance brokers is available at the following address: <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>. DBA insurance cost will be evaluated as part of the total evaluated firm fixed price and included in the firm fixed price of the task order. The Contractor shall be reimbursed for the cost of DBA insurance only upon providing proof of payment. If the contractor's place of performance is other than Burundi the contractor shall review the list of DBA insurance waivers at <https://www.dol.gov/agencies/owcp/dlhwc/dbawaivers/dbawaivers#current> and obtain a quote for DBA insurance if applicable.

B.6. Abbreviations

CLIN	Contract Line Item Number
CO	Contracting Officer
COR	Contracting Officer's Representative
DBA	Defense Base Act
DOSAR	Department of State Acquisition Regulations
FAR	Federal Acquisition Regulations
NTP	Notice to Proceed
SOW	Scope of Work
UEI	Unique Entity ID
USG	US Government

C. Performance Work Statement (PWS)

C.1. General Scope

The contractor shall perform gardening services, including furnishing all labor, material, equipment and services, for the U.S. Embassy Gaborone. The price listed below shall include all labor, materials, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit. The Government will pay the Contractor the fixed price per month for standard services that have been satisfactorily performed.

After contract award and submission of acceptable insurance certificates, the Contracting Officer shall issue a Notice to Proceed. The Notice to Proceed will establish a date (a minimum of ten (10) days from date of contract award unless the Contractor agrees to an earlier date) on which performance shall start.

The performance period of this contract is from the start date in the Notice to Proceed and continues for 12 months, with four (4) option years available for renewal. **The initial period of performance includes the transition period authorized under this contract.** This work shall be performed by Contractor's trained employees on gardening maintenance and landscaping and shall not be subcontracted.

C.2. Schedule of Supplies/Services

C.2.1. Purpose

The purpose of this contract is to obtain gardening services for real property owned or managed by the U.S. Government (USG) at U.S Embassy Gaborone along with CDC premises in Gaborone West. The Contractor shall perform gardening services in all designated spaces including, but not limited to courtyard, driveways, vehicle parking lots and areas immediately outside the perimeter/security wall up to the street.

C.2.2. General Requirements

Maintenance and appearance of the grass, shrubbery, garden areas, trees, and related landscape elements of the U.S. Embassy and other USG properties are an important part of the representational responsibilities of the U.S. Mission. The Government will measure the Contractor's work by the appearance of the landscape covered by this contract. The Contractor shall perform complete gardening and landscape maintenance services as described in this contract for all Government properties listed under clause C2.14. The Contractor shall include all planning, administration, and management necessary to assure that all services comply with the contract, the COR's schedules and instructions, and all applicable laws and regulations. The Contractor shall meet all of the standards of performance identified in the contract. The Contractor shall perform all related support functions such as supply, subcontracting, quality control, financial oversight, and maintenance of complete records and files.

C.2.3. Management And Supervision

C.2.3.1. Supervision.

The Contractor shall designate a qualified representative who shall be responsible for on-site supervision of the Contractor's workforce at all times. This supervisor shall be the focal point for the Contractor and shall be the point of contact with Contracting Officer Representative (COR) of this project. The supervisor shall have sufficient English language skill to be able to communicate with members of the U.S. Government staff. The supervisor shall have supervision as his or her sole function.

C.2.3.2. Schedules.

The Contractor shall maintain work schedules. The schedules shall take into consideration the hours that the staff can effectively perform their services without placing a burden on the security personnel of the Post. The Contractor shall deliver standard services between the hours of 8:00 AM to 5:00 PM Monday through Thursday and 8:00 AM to 1:30 PM Fridays. For those items other than routine daily

services, the contractor shall provide the COR with a detailed plan as to the personnel to be deployed at each site and the time frame to perform the service.

C.2.3.3. Quality control.

C.2.3.4 Technical Guidance.

The Contractor shall have the services of a trained horticulturist with experience in the climate and soil conditions found locally to give technical guidance to the Contractor's work force and to develop and guide the Contractor's programs for lawn and tree care. (Credentials to be provided to the Contracting Officer)

C.2.3.5. Grounds Maintenance Plan.

The Contractor shall submit an annual Grounds Maintenance Plan that reflects the proposed frequency for executing the contract requirements. The Grounds Maintenance Plan will be developed to fit the requirements of local conditions, types of vegetation, and climate factors. The Grounds Maintenance Plan must provide an estimated amount of water needed per season at each site and the recommended times and frequencies of watering. The method, frequencies, and dates of grass cutting, hedging, trimming, weeding, garden refuse collection, cobweb removal from perimeter walls, sweeping driveways & parking lots and outside hallways, wiping/cleaning of garden furniture, maintaining water fountains, maintaining the area immediately outside the perimeter walls up to the street into and over the storm water channels if these exist. Turf repair shall form part of the contractor's Grounds Maintenance Plan.

C.2.4 Lawn Care

C.2.4.1. Grass cutting.

The Contractor shall maintain the height of grass between 4 and 6 centimeters. The Contractor is responsible for all equipment and fuels needed to complete this task.

C.2.4.2. Edging.

The Contractor shall edge all sidewalks, driveways, and curbs each time the adjacent grass is cut. Edge shall be no more than one centimeter away from the edge of hard surface or designated line.

C.2.4.3. Trimming.

The Contractor shall trim grass around trees, shrubs, cultivated areas, sprinkler heads, valves, fences, buildings, poles, and structures, so that grass height does not exceed the height of the adjacent grass.

C.2.4.4. Weeding.

The Contractor shall weed the grounds and gardens on a continuous basis to prevent the growth of weeds into lawn and landscapes. The Contractor may use weed-killing chemicals (at agreed intervals) as approved by the government, to prevent the growth of weeds to eliminate grass and weeds in the cracks and joints within or along sidewalks and curbs. The Contractor shall obtain approval of the COR for all applications of weed killers.

C.2.4.5. Turf Repair And Re-Establishment.

The contractor shall, whenever necessary, repair areas damaged by vehicular traffic, oil and gas, building repairs, and normal foot traffic. The damaged area shall be filled in and leveled and then seeded or sodded, and maintained to conform to adjacent areas. Hard surfaces that are damaged by same shall be restored using same of other approved materials, using the best practices of the trade.

C.2.5. Pruning

C.2.5.1 The Contractor shall maintain trees, shrubs, hedges, bushes, vines, ground cover and flowers. This shall include maintenance required to keep shrubs & trees

away from security fences, gates and all other security devices and means of egress.

C.2.5.2. The Contractor shall prepare a written schedule, as part of the Grounds Maintenance Plan, showing the method, frequencies, and dates of pruning.

C.2.5.3. The Contractor shall prune all shrubs, vines, bushes, ground cover, and trees to:

direct and encourage plant growth in directions desired, remove dead and unsightly growth, and maintain a neat and attractive appearance.

The Contractor shall prune according to the schedule in the Grounds Maintenance Plan to ensure that all heavy pruning is accomplished during the proper season according to best horticultural practice. The Contractor shall prune all hedges and shaped shrubs to maintain proper shape at all times.

C.2.5.4. At no additional cost to the Government, the Contractor shall replace any tree, bush or shrub that is killed or rendered unusable for its intended purpose through negligent or irresponsible practices that are attributable to the Contractor.

C.2.6. Leaf Removal.

The contractor shall, on a monthly basis, remove leaves and pine needles from the properties listed in C2.14 and on a weekly basis.

C.2.7. Recycled Materials.

The Contractor shall promote recycled uses for lawn and tree debris in meeting other gardening needs, such as mulch and compost.

C.2.8. Removal Of Debris.

The Contractor shall remove foreign material, cuttings, grass, leaves, bark, limbs, dead vegetation, paper, trash, dirt and dust are to be removed from the maintained areas including walkways, driveways, stairways, roadways, parking lots and curbs within or adjacent to the maintained area on a daily basis. The walkways and external courtyard paving shall be power washed once a month using borehole water provided by the Embassy. All debris resulting from the Contractor's operations are to be removed from the worksite prior to the end of each workday. Debris removal is to be performed to prevent unsightly or inordinate accumulation. Collected debris shall be promptly removed to an authorized disposal site. The Contractor is responsible for all expenses incurred in the collection and disposal of debris. During times of rain, the Contractor will be required to remove stagnant water from walkways, driveways and parking areas.

C.2.9. Watering.

C.2.9.1. The Contractor shall water lawns, flowers, shrubs, and trees to provide for moisture penetration to a depth of 7 centimeters. If natural precipitation is sufficient to fulfill this requirement, the contractor may request the COR's permission to suspend watering to avoid too much water in the soil.

C.2.9.2. The Contractor shall present the method, frequencies, and dates of watering in a written schedule in the Grounds Maintenance Plan. The schedule shall consider the kinds of vegetation, local soil conditions, and the seasonal variations in plant moisture requirements.

C.2.9.3. The Contractor shall provide all hoses, portable sprinklers, and other similar irrigation equipment.

C.2.9.4. The Government shall furnish the supply of borehole water at the rest of the facilities under this contract.

C.2.10. Fertilizer.

C.2.10.1. The Contractor shall fertilize and lime the soil to promote proper health, growth, color, and appearance of cultivated vegetation, following proper horticultural practice for the types of vegetation, soil, weather conditions, and seasons of the year.

C.2.10.2. The Contractor shall present the method of application, fertilizer type, frequencies, and dates of fertilizing and liming in the Grounds Maintenance Plan.

C.2.10.3. The Contractor shall fertilize the lawn areas a minimum of two times per year.

C.2.10.4. The Contractor shall apply weed killer once a year. If weed killer is not required, the contractor shall request a waiver in writing from the COR.

C.2.10.5. The Contractor shall fertilize trees, shrubs, bushes, hedges and plants a minimum of once a year.

C.2.11. Pest And Disease Control.

The contractor shall maintain a program for controlling pests and plant diseases so as to maintain flowers, shrubs, vines, trees and other planted areas in a healthy and vigorous condition. The Contractor shall obtain approval of the COR for all pesticides.

The contractor shall present a plan for pest and disease control as a part of its Grounds Maintenance Plan.

C.2.12. Hazardous And Toxic Substances.

It is the contractor's responsibility to ensure the safe handling, application, removal and environmentally sound disposal of all hazardous or potentially hazardous fertilizers, weed killers, and pest control products utilized in this requirement.

C.2.13. Sites For Gardening Services and Maintenance

All standard services are to be delivered on regular Post working days.

Project Sites

OBO AHAAP House

OBO Open Residence (common area)

CMR

DCMR

Chancery Compound

MSGR

REC Center

Health Unit (H/U)

CDC – Head Office

C.2.14 SOW for Garden Services Maintenance Contract for CDC

CDC Botswana has one site that will require garden services. This site houses CDC's main offices in three different buildings, Blocks A, B, and C, and will require substantial garden services due to the size of the plot, garden/lawn, parking and fenced areas.

The Contractor shall prepare a written schedule for CDC Gaborone West premises, as part of the Grounds Maintenance Plan, to include the method, frequencies and dates for the below lawn care and garden services and submit to CDC's Contracting Officer Representative (COR) 15 days after the contract is awarded.

The vendor is expected to extend the services under **C.2** along the front boundary wall to the edge of the road. Furthermore, it is expected that the vendor would carry out the same services between the boundary wall and the municipal storm water drainage channel besides the Molepolole road. The successful vendor is expected to utilize 15,000 liters of borehole water from onsite storage tanks for irrigation throughout the G/West facility. All irrigation should be completed by no later than 10am each day and preferably before 9am. The storage tanks, water pump and plumbing mechanisms will be supplied by CDC Botswana. The successful vendor must ensure that branches from trees along the boundary wall are properly trimmed away from the electric fence in order to ensure full functionality of the electric fence at all times. There are courtyards within Block A and Block B currently landscaped with trees, shrubs and/or potted plants. Please note that these areas form an integral part of the landscaping contract and require all services specified above under C.2. to be provided.

C.3. Personnel Requirements

C.3.1 General

The Contractor shall maintain discipline at the site and shall take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by Contractor employees at the site. The Contractor shall preserve peace and protect persons and property on site. The Government reserves the right to direct the Contractor to remove an employee from the worksite for failure to comply with the standards of conduct. The Contractor shall immediately replace such an employee to maintain continuity of services at no additional costs to the Government.

C.3.2 Standard of Conduct

C.3.2.1 Uniforms and Personal Equipment. The Contractor's employees shall wear clean, neat and complete uniforms when on duty. All employees shall wear uniforms approved by the Contracting Officer's Representative (COR).

C.3.2.2 **Neglect of duties** shall not be condoned. The Contractor shall enforce no sleeping while on duty, unreasonable delays or failures to carry out assigned tasks, conducting personal affairs during duty hours and refusing to render assistance or cooperate in upholding the integrity of the worksite security.

C.3.2.3 **Disorderly conduct**, use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is participation in disruptive activities, which interfere with normal and efficient Government operations.

C.3.2.4 **Intoxicants and Narcotics**. The Contractor shall not allow its employees while on duty to possess, sell, consume, or be under the influence of intoxicants, drugs or substances that produce similar effects.

C.3.2.5 **Criminal Actions**. Contractor employees may be subject to criminal actions as allowed by law in certain circumstances. These include but are not limited to the following actions:

- Falsification or unlawful concealment, removal, mutilation, or destruction of any official documents or records or concealment of material facts by willful omission from official documents or records;
- Unauthorized use of Government property, theft, vandalism, or immoral conduct;
- Unethical or improper use of official authority or credentials;
- Security violations; or,
- Organizing or participating in gambling in any form.

C.3.2.6 **Key Control**. The Contractor shall receive, secure, issue, and account for any keys issued for access to buildings, offices, equipment, gates, etc., for the purposes of this contract. The Contractor shall not duplicate keys without the COR's approval. Where it is determined that the Contractor or its agents have duplicated a key without permission of the COR, the Contractor shall remove the individual(s) responsible from this contract. If the Contractor has lost any such keys, the Contractor shall immediately notify the COR. In either event, the Contractor shall reimburse the Government for the cost of rekeying that portion of the system.

E: Inspection and acceptance

E.1. Quality Assurance and Surveillance Plan (QASP)

This plan is designed to provide an effective surveillance method to promote effective contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor contractor performance, advise the contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to conduct quality assurance to ensure that contract standards are achieved.

Roles and Responsibilities

Contracting Officer (CO)

- Overall contract administration and enforcement
- Final authority on contract compliance issues
- Takes corrective action for continued unsatisfactory performance
- Approves major corrective action plans

Contracting Officer's Representative (COR)

- Day-to-day contract surveillance and monitoring
- Primary point of contact with contractor's supervisor
- Documents performance and complaints
- Conducts scheduled and unscheduled inspections
- Reviews and approves contractor submittals
- Recommends corrective actions to CO

Contractor's Supervisor

- Ensures workforce compliance with contract requirements
- Responds to COR notifications within specified timeframes
- Implements quality control measures
- Submits required documentation and reports

Government Personnel (End Users)

- Report service deficiencies to COR
- Provide feedback on contractor performance

E.2. Surveillance

Performance Objective	PWS Reference	Surveillance Method
annual Grounds Maintenance Plan submitted and followed	C.2.3.5.	Document review, site inspection
Grass height maintained between 4-6 cm	C.2.4.1.	Random measurements at several locations
curbs edged within 1 cm of hard surface each cutting	C.2.4.2.	Visual inspection
Damaged turf areas repaired, leveled, seeded/sodded to match adjacent areas	C.2.4.5.	Visual inspection, photo documentation
Trees, shrubs, hedges maintained (away from security fences)	C.2.5.	Visual inspection of all security perimeters and plantings
Adequate watering	C.2.9.	Soil moisture testing at random locations

Lawn fertilization	C.2.10.3.	Review application records, visual assessment
Weed killer application	C.2.10.4.	Review application records or waiver
Pest and disease control	C.2.11.	Review control plan, approval records, plant health
Key control, no unauthorized duplication	C.3.2.6	Key inventory

E.3. Standard

The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212-4, Contract Terms and Conditions-Commercial Items), if any of the services exceed the standard.

E.4. Procedures

The COR will receive and document all complaints from Government personnel and own inspections regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.

E.4.1 If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.

E.4.2 The COR will complete appropriate documentation to record the complaint.

E.4.3 If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.

E.4.4 If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.

E.4.5 The COR shall, as a minimum, orally notify the Contractor of any valid complaints.

E.4.6 If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.

E.4.7 The COR will consider complaints as resolved unless notified otherwise by the complainant.

E.4.8 Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

F. Deliveries or Performance

F.1. Working Hours

All work shall be performed on working weekdays Monday through Thursday from 8:00 AM to 5:00 PM and on Fridays from 8:00 AM to 1:30 PM, except for the holidays identified in Attachment 2 "List of Holidays 2026". Other hours may be approved by the Contracting Officer's Representative. The Contractor must provide at least 24-hour advance notice to the COR who will consider any deviation from the hours identified above.

F.2. Deliverables

The following items shall be delivered under this contract:

<u>Description</u>	<u>Quantity</u>	<u>Delivery date</u>	<u>Deliver to:</u>
Insurance	1	10 days after award	Contracting Officer
List of Personnel	1	10 days after award	COR
Transition Plan	1	7 days after award	COR
Payment Request	1	monthly	COR

F.3. Notice to the Government of Labor Disputes

The Contractor shall inform the COR of any actual or potential labor dispute that is delaying or threatening to delay the timely performance of this contract.

F.4. Personnel Security

F.4.1. Immediately after contract award, the Contractor shall provide the following list of data on each employee who will be working under the contract. The Contractor shall include a list of workers and supervisors assigned to this project. The Government will run background checks on these individuals through the local law enforcement agency (Police). For each proposed employee, the list shall include:

- Full Name
- Place and Date of Birth
- Current Address
- Identification copy (ID or Passport) certified
- Detailed CV with working contact phone/mobile number/s
- Educational Certificates copies certified
- Current fingerprints from the local police
- Complete security clearance documentation for each electronically

F.4.2. Government shall issue identity cards to Contractor personnel, after they are approved through the above process. Contractor personnel shall display identity card(s) on the uniform at all times while providing services under this contract.

These identity cards are the property of the U.S. Government. The Contractor is responsible for their return at the end of the contract, when an employee leaves employment under this contract or otherwise, or at the request of the Government. The Government reserves the right to deny access to U.S.-owned and U.S. operated facilities to any individual.

F.5. Materials and Equipment

The Contractor shall provide all necessary gardening supplies and equipment, including rakes, lawn mowers, leaf blowers, hoes, pitchforks, pruning shears, fertilizers, and refuse bags. Fuel required to drive maintenance equipment shall be provided by the contractor.

F.6. Laws and Regulations

F.6.1. Without additional expense to the Government, the Contractor shall comply with all laws, codes, ordinances, and regulations required to perform this work. If there is a conflict between the contract and requirements of local law, the Contractor shall promptly advise the Contracting Officer of the conflict and of the Contractor's proposed course of action for resolution by the Contracting Officer.

F.6.2. The Contractor shall comply with all local labor laws, regulations, customs and practices pertaining to labor, safety, and similar matters, unless they are inconsistent with the requirements of this contract.

F.7. Transition Plan

Within 7 days after contract award the contractor shall develop a plan for preparing the contractor to assume all responsibilities for gardening services. The plan shall establish the projected period for completion of all clearances of contractor personnel, and the projected start date for performance of all services required

under this contract. The plan shall assign priority to the selection of all supervisors to be used under the contract. The plan will also detail the names of personnel to be engaged in the contract for each of the sites.

H. Special Contract Requirements

H.1. Insurance

H.1.1. **Amount of Insurance.** The Contractor is required to provide whatever insurance is legally necessary. The Contractor shall, at its own expense, provide and maintain during the entire performance period the following insurance amounts:

H.1.2. **General Liability** (includes premises/operations, collapse hazard, products, completed operations, contractual, independent contractors, broad form property damage, personal injury)

H.1.2.1. Bodily Injury stated in US Dollars:

- Per Occurrence \$5,000.00
- Cumulative \$10,000.00

H.1.2.2. Property Damage stated in US Dollars:

- Per Occurrence \$500.00
- Cumulative \$1,000.00

H.1.3. The types and amounts of insurance are the minimums required. The Contractor shall obtain any other types of insurance required by local law or that are ordinarily or customarily obtained in the location of the work. The limit of such

insurance shall be as provided by law or sufficient to meet normal and customary claims.

H.1.4. For those Contractor employees assigned to this contract who are either United States citizens or direct hire in the United States or its possessions, the Contractor shall provide workers' compensation insurance in accordance with FAR 52.228-3.

H.1.5. The Contractor agrees that the Government shall not be responsible for personal injuries or for damages to:

- any property of the Contractor,
- its officers,
- agents,
- servants,
- employees, or
- any other person,
- arising from an incident to the Contractor's performance of this contract. The Contractor shall hold harmless and indemnify the Government from any and all claims arising, except in the instance of gross negligence on the part of the Government.

H.1.6. The Contractor shall obtain adequate insurance for damage to, or theft of, materials and equipment in insurance coverage for loose transit to the site or in storage on or off the site.

H.1.7. Government as Additional Insured. The general liability policy required of the Contractor shall name "the United States of America, acting by and through the Department of State," as an additional insured with respect to operations performed under this contract.

H.1.8. Time for Submission of Evidence of Insurance. The Contractor shall provide evidence of the insurance required under this contract within ten (10) days after contract award. The Government may rescind or terminate the contract if the Contractor fails to timely submit insurance certificates identified above.

I. Applicable Clauses and Provisions:

Clauses incorporated by reference

The full text of the referenced FAR and DOSAR clauses may be accessed electronically at <https://www.acquisition.gov/>.

The selected Offeror must comply with the following commercial item terms and conditions, which are incorporated herein by reference:

<u>Clause</u>	<u>Title and Date</u>
FAR 52.203-6 Alt I	Restrictions on Subcontractor Sales to the Government (Nov 2021)
FAR 52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
FAR 52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
FAR 52.204-9	Personal Identity Verification of Contractor Personnel (Jan 2011)
FAR 52.204-13	System for Award Management-Maintenance (DEVIATION JAN 2026)
FAR 52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (Deviation Jan 2026)
FAR 52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Deviation Jan 2026)
FAR 52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services (Deviation Jan 2026)
FAR 52.217-8	Option to Extend Services (Nov 1999)
FAR 52.217-9	Option to Extend the Term of the Contract (Mar 2000)
FAR 52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Deviation Feb 2026)
FAR 52.222-50	Combating Trafficking in Persons (Deviation Feb 2026)

FAR 52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving (May 2024)
FAR 52.229-12	Tax on Certain Foreign Procurements (Feb 2021)
FAR 52.232-19	Availability of Funds for the Next Fiscal Year (Apr 1984)
FAR 52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
FAR 52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)
FAR 52.233-3	Protest after Award (Deviation Jan 2026)
FAR 52.233-4	Applicable Law for Breach of Contract Claim (Deviation Jan 2026)
FAR 52.237-3	Continuity of Services. (Jan 1991)
FAR 52.240-91	Security Prohibitions and Exclusions (Deviation Jan 2026)
FAR 52.244-6	Subcontracts for Commercial Products and Commercial Services (Deviation Jan 2026)
DOSAR 652.204-70	Department of State Personal Identification Card Policy and Procedures (Jan 2026)
DOSAR 652.225-71	Section 8(A) Of The Export Administration Act Of 1979, Amended (Aug 1999)
DOSAR 652.229-71	Personal Property Disposition At Posts Abroad (Aug1999)
DOSAR 652.237-72	Observance Of Legal Holidays And Administrative Leave (Feb 2015)
DOSAR 652.237-802	Contractor identification
DOSAR 652.242-73	Authorization And Performance (Aug 1999)
DOSAR 652.243-70	Notices (Aug 1999)
DOSAR 652.225-70	Arab League Boycott Of Israel (Aug 1999)
DOSAR 652.232-72	Limitation Of Funds (AUG 1999)
DOSAR 652.242-70	Contracting Officer's Representative (Cor) (Aug 1999)

Provisions incorporated by reference

<u>Provision</u>	<u>Title and Date</u>
52.203-11	Certification And Disclosure Regarding Payments to Influence Certain Federal Transactions (Sept 2024)
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation (Jan 2017)

52.204-7	System for Award Management - Registration (Deviation Jan 2026)
52.212-2	Evaluation-Commercial Products and Commercial Services (Deviation Jan 2026)
52.214-34	Submission of Offers in the English Language (Apr 1991)
52.217-5	Evaluation of Options (Deviation Jan 2026)
52.225-17	Evaluation of Foreign Currency Offers (Feb 2000)

The following clause(s) and provision(s) are provided in full text:

652.222-800 - Recruitment of Third Country Nationals for Performance on Department of State Contracts (MAY 2023)

1. Where contracts exceeding the Simplified Acquisition Threshold will require the recruitment of Third Country Nationals (TCNs), the offeror is required to submit a Recruitment Plan as part of its proposal. Offerors providing employer furnished housing are required to submit a Housing Plan. All plans are assessed on a pass/fail basis.

2. Recruitment Plans must:

- a. State the anticipated number of workers to be recruited, the skills they are expected to have, and the country or countries from which the contractor intends to recruit them.
- b. Explain how the contractor intends to attract candidates and the recruitment strategy including the recruiter.
- c. State in the offer that the recruited employee will not be charged recruitment fees as defined in FAR 22.1702 and FAR52.22-50. The contractor or employer pays the recruitment fees for the worker if recruited by the contractor or subcontractor to work specifically on Department of State contracts.
- d. Recruitment fees included by the prime contractor in the contract price must be allowable by country law, allocable to the contract based on benefit to the program, and reasonable based on what a prudent businessperson would pay for similar expenses and charges. The

reasonableness of recruitment fees should be assessed based on the reasonableness of the individual components.

e. State in the offer that the contractor's recruitment practices comply with recruiting nation and host country labor laws.

f. State in the offer that the contractor has read and understands the requirements of FAR 52.222-50 Combating Trafficking in Persons.

g. Contractor will advise the Contracting Officer of any changes to the Recruitment Plan during performance.

3. The offeror will submit a Housing Plan if it intends to provide employer furnished housing for TCNs. The Housing Plan must describe the location and description of the proposed housing. Contractors must state in their offer that housing meets host country housing and safety standards and local codes. Contractor shall comply with any Temporary Labor Camp standards contained in their contract. In contracts without a Temporary Labor Camp standard, a minimum of 70 square feet per employee must be allocated if an employee is housed individually; if housed together, a minimum of 50 square feet per employee must be allocated unless waived by the Contracting Officer. Contractor shall submit proposed changes to their Housing Plan to the Contracting Officer for approval.

4. Department of State contractor and subcontractors will prevent human trafficking and treat employees with respect and dignity by taking the following actions:

a. Contractor may not destroy, conceal, confiscate, or otherwise deny access to an employee's identity documents, passports, or immigration documents. Contractors and subcontractors are reminded of the prohibition contained in Title 18, United States Code, Section 1592, against knowingly destroying, concealing, removing, confiscating, or possessing any actual or purported passport or other immigration document to prevent or restrict the person's liberty to move or travel in order to maintain the services of that person, when the person is or has been a victim of a severe form of trafficking in persons. Contractor must be familiar with any local labor law restrictions on withholding employee identification documentation.

- b. Contractor shall provide employees with signed copies of the/their employment contracts that are in a language the worker understands and define the terms of employment, compensation including salary, overtime rates, allowances, salary increases, job description, description of any employer provided housing, benefits including leave accrual, and information on whether hazardous working conditions are anticipated. Contracts must be provided prior to employee departure from their countries of origin. Fraudulent recruiting practices, including deliberately misleading information, will be considered a material breach of this contract.
- c. Contractor shall provide all employees with the Department's "Know Your Rights" poster and document that employees have been briefed on the contents of the poster. The English language version is available at posters and accompanying directions or from the Contracting Officer.
- d. Contractor shall display posters in worker housing advising employees in English and the dominant language of the TCNs being housed of the requirement to report violations of Trafficking in Persons to the company and the company's obligation to report to the Contracting Officer. The poster shall also indicate that reports can also be submitted to the Office of the Inspector General (OIG) Hotline, [StateOIG.gov/Hotline](https://www.stateoig.gov/Hotline) at 202-647-3320 or 1-800-409-9926 or via email at WPEAombuds@stateoig.gov.
- e. Contractor shall brief employees on the requirements of the FAR 52.222-50 Combating Trafficking in Persons including the requirements against procuring commercial sex even in countries where it is legal and shall provide a copy of the briefing to the Contracting Officer's Representative.
- f. Contractor and subcontractors shall comply with sending and receiving nation laws regarding transit, entry, exit, visas, and work permits. Contractors are responsible for repatriation of workers who have traveled from other countries for contract performance except an employee legally permitted to remain in the country of work and who chooses to do so; including an employee who is a victim of trafficking seeking victim services and/or legal redress in the country of employment and/or is a witness in a trafficking-related enforcement action.
- g. Contractor shall monitor subcontractor compliance at all tiers. This includes verification that subcontractors are aware of, and understand, the

requirements of FAR 52.222-50 Combating Trafficking in Persons and this clause. Contractors specifically agree to allow U.S. Government personnel access to contractor and subcontractor personnel, records, and housing for audit of compliance with the requirements of this clause.

h. The contractor agrees to include FAR Clause 52.222-50 Combating Trafficking in Persons in all subcontracts over the simplified acquisition threshold involving recruitment of third country nationals for subcontractor performance.

5. For contracts or subcontracts with performance overseas valued at \$700,000 or more, other than those commercially available off-the-shelf items, offerors will certify with the submission of their proposal and annually thereafter that the contractor and subcontractors have a compliance plan in place appropriate to the size and nature of the program to prevent human trafficking and to comply with the provisions of this clause. The certification will confirm that, to the best of its knowledge and belief of the signatory, neither the prime nor its agents nor subcontractor have engaged in any trafficking related activities, including the procurement of a commercial sex act during the period of the contract, the use of forced labor in the performance of the contract, acts that support or facilitate trafficking in persons such as destroying or confiscating employees' documents or failing to provide return transportation, soliciting employees by use of fraud or charging recruitment fees or providing sub-standard housing described in section 106(g) of the Trafficking Victims Protection Act (TVPA) or the prohibitions of this clause. The certification will also confirm that if any violations have been found, the contractor has taken the appropriate remedial and referral actions.

6. Contractors and subcontractors can find a model FAR compliance plan, a sample code of conduct, a supplier/subcontractor self-assessment questionnaire, and criteria to select and monitor labor recruiters among other tools on the Responsible Sourcing Tool website. The Responsible Sourcing Tool is designed to assist Federal contractors, procurement officials, and other stakeholders in identifying human trafficking or trafficking-related activities in their supply chains and developing effective management systems to prevent and address these issues. Beyond the due diligence tools, the site enables federal contractors, acquisition officials, and

other entities to visualize human trafficking risks by location, industry sector, and commodity.

(End of clause)

J. List of Attachments

Attachment 1: Price-Proposal-Breakdown

Attachment 2: List of Holidays

Attachment 3: W-14-Form

Attachment 4: W-14-Instructions

K. Representations and Certifications

The offeror is required to fill and sign “Representations and Certifications” containing the following provisions:

FAR 52.240-90

Security Prohibitions and Exclusions Representations and Certifications (Deviation Jan 2026)

K1. FAR 52.229-11 Tax on Certain Foreign Procurements— Notice and Representation.

(a) Definitions. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in [26 U.S.C. 7701\(a\)\(30\)](#) means

- (1) A citizen or resident of the United States;
 - (2) A domestic partnership;
 - (3) A domestic corporation;
 - (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 701\(a\)\(31\)](#)); and
 - (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under [26 U.S.C. 5000C](#), the Offeror represents that
- (1) It ☐ is ☐ is not a foreign person; and
 - (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.
- (e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph

(d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

K2. Defense Base Act—Covered Contractor Employees.

(a) Offerors shall indicate below whether or not any of the following categories of employees will be employed on the resultant contract, and, if so, the number of such employees:

Category	Yes/No	Number
(1) United States citizens or residents		
(2) Individuals hired in the United States, regardless of citizenship		

(3) Local nationals or third country nationals		Local Nationals: ____ Third Country Nationals: ____
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- (b) For U.S. contract's services performed overseas with the above categories of employees (1) & (2), DBA insurance is required and must be included regardless of the employee's country of residence.
- (c) For employees listed in category (3) above, DBA insurance may / may not be required for Local Nationals or third country nationals. See B.5 for current DBA requirements.

(End of provision)

52.222-56 - Certification Regarding Trafficking in Persons Compliance Plan (Deviation Feb 2026)

- (a) The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled "Combating Trafficking in Persons" (FAR clause 52.222-50).
- (b) The apparent successful Offeror must submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-
- 1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and
 - 2) Has an estimated value that exceeds \$700,000.

(c) The certification must state that-

- 1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at 52.222-50, Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at 52.222-50, Combating Trafficking in Persons; and
- (2) After having conducted due diligence, either-
 - (i) To the best of the Offeror's knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or
 - (ii) If abuses relating to any of the prohibited activities identified in 52.222-50(b) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

(End of provision)

L. Instructions to Offerors—Commercial Products and Commercial Services.

(a) Submission of offers.

Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. The information shall be in a format readable by Microsoft (MS) Word 2016, MS Excel 2016 or PDF as applicable.

The complete offer shall be submitted via email to the email addresses provided below. The file size limit for individual emails is 50 Mb. If the proposal is sent in multiple emails, the email shall be labeled accordingly (e.g. file 1 of 2).

The email shall be marked “**Offer 19GE5026Q0044**” and must arrive on or before May 26, 2026 12:00 hrs (UTC+2:00).

ArnoldG@state.gov

BaltaA@state.gov

Preparation of Offers: Offerors shall prepare and submit their offer in two (2) separate volumes as set forth below.

Volume 1: Price Offer

One (1) Electronic version sent via email.

As a minimum, volume 1 shall include:

1. The solicitation number;
2. The name, address, telephone number of the Offeror;
3. The Offeror’s Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
4. Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
5. A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.
6. Completed Price Proposal Breakdown (Attachment 1 or similar), the total of which that of the firm fixed-price.
7. Provide the evidence of SAM registration as required in FAR 52.204-13. The SAM status must be “active”.

8. Completed form W-14 (Attachment 3), if the offeror has represented that it is not a U.S. person and is eligible for exemption from the 2% excise tax in provision 52.229-11 (above).

Offers who fail to furnish required representations or information or reject the terms and conditions of the solicitation shall be excluded from consideration.

Volume 2: Technical Offer

One (1) Electronic version sent via email

1. Company information.
2. Resume of Team Leaders as described in Section C.2.3.1. of the SOW. The proposed Team leaders shall be able to converse in English.
3. List of clients over the past 5 years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in the host country, then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:
 - Quality of services provided under the contract;
 - Compliance with contract terms and conditions;
 - Effectiveness of management;
 - Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
 - Business integrity/business conduct. The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

4. Evidence that the offeror can provide the necessary personnel, equipment, and financial resources needed to perform the work (including proof of qualifications and experiences documentation).
5. The Offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided. Additionally, the offeror must provide evidence of operating an established business in Botswana, including a permanent address and telephone listing.
6. The offeror's plan gardening services to include but not limited to:
 - A work plan considering all work elements in Section C, Performance Work Statement.
 - If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), or a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.

Note: Firms shall not include any pricing-related information in their technical quotes.

(b) Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting

the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award

The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings.

A post-award debriefing shall not be provided.

(End of provision)

Pre-proposal conference and Site Visit

A Site Visit will take place on **Tuesday, May 12, 2026 14:00hrs** (UTC+2:00) which all prospective offerors are invited to attend. Offerors shall express their interest in attending the Site Visit.

A pre-proposal conference will held earlier that day online at **10:00hrs**.

Registration is essential should you wish to participate in the site visit and or pre-proposal conference. Companies are therefore required to submit, via email:

1. Full name
2. Title/Company
3. Date of Birth
4. Place of Birth
5. Passport/ID #
6. Country of Passport/ID
7. Passport/ID expiration date

to Guido Arnold at ArnoldG@state.gov no later than **Friday, May 8, 2026 12:00hrs** (UTC+2:00).

Admittance to the conference cannot be guaranteed unless the government receives your registration by this due date. Attendance is limited to **no more than 2 people** per company. No substitutes or additional persons may attend the site visit. Attendees are requested to carry their Photo ID along with them. Without Photo ID you may be refused entry to the Site.

Those individuals who timely submitted company's name, name of attendee, nationality and provided the passport ID-number shall meet at:

U.S. Embassy Gaborone, Embassy Drive, Government Enclave, Gaborone, Botswana

Note: The U.S. Embassy cannot provide parking for any offerors who wish to attend the site visit.

Submission of Questions:

Interested parties may submit any questions concerning the solicitation as soon as possible but not later than **Monday 18, 2026 12:00hrs (UTC+2:00)**, email to Guido Arnold at "ArnoldG@state.gov" and copy "BaltaA@state.gov". The email subject line must read "Solicitation 19GE5026Q0044." Any questions or clarifications submitted should identify the topic (e.g. technical, cost) and must refer to the applicable section of the solicitation (e.g. section, paragraph, and subparagraph). No questions by telephone will be accepted. Answers and responses by the Government may form the basis of an amendment to the solicitation.

Late questions may not be considered.

Offer Due Date:

Offers shall be submitted as soon as possible but **not later than May 26, 2026 12:00hrs (UTC+2:00)**, email to Guido Arnold at "ArnoldG@state.gov" and copy "BaltaA@state.gov". The email subject line must read "Solicitation 19GE5026Q0044." The email size shall not exceed 45 MB.

Late submissions shall not be considered.

Applicable laws and regulations: Solicitation and award will be subject to laws and regulations of the United States of America.

M. Evaluation Factors for Award

FAR 52.212-2 - Evaluation—Commercial Products and Commercial Services.

(Deviation Jan 2026)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

- Compliance Review
- Technical Capability
- Past Performance
- Price Evaluation

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

End of provision)

To be acceptable and eligible for evaluation, proposals shall be prepared in accordance with Section L – “Instructions to Offerors” and shall meet all the requirements set forth in the other sections of this solicitation.

The Government intends to make award to the offeror who provides the best value, provided the offeror submits an acceptable technical proposal, offers a fair and reasonable price, and the offeror is determined to be responsible. Negotiations may be conducted to obtain clarifications or improvements in the offeror’s proposal. Evaluations will be conducted in accordance with the procedures set forth below:

M.1. Initial Evaluation

All proposals received will be evaluated to ensure that each proposal is complete in terms of submission of each required volume, as specified in Sub-Section “L. Instructions to Offerors”. Proposals that are missing a significant amount of the required information may be eliminated from consideration at the Government's discretion.

M.2. Evaluation Process

During the evaluation process, the Government Evaluation Team and Contracting Officer will first review each offeror's submission of the Mandatory Minimum Requirements. If any offeror does not meet the mandatory minimum requirements, then their proposal will no longer be considered.

Once this phase of evaluation process is complete, the Government Evaluations Team and Contracting Officer will move on to Phase 2. In Phase 2, the Government Evaluation Team will evaluate each Offeror's proposal using information submitted by the Offeror (or in the case of past performance, any additional information obtained from outside references and other points of contact) against evaluation factors contained herein. The Government evaluation team will use the comparative evaluation process on the Offeror's technical proposal against the evaluation factors identified herein to determine the best value for award.

In addition, the Government evaluation team will evaluate the Offeror's price proposal. All evaluation factors combined are approximately equal to cost/price.

M.3. Evaluated Phases

The Government will evaluate offers in the following two phases:

Phase 1 – Mandatory Minimum Requirements

During this phase, the Government will determine whether a proposal satisfies all of the Mandatory Minimum Requirements stated above in the RFP. All of the

Mandatory Minimum Requirements listed must be satisfied in order for the offeror's proposal to enter Phase 2. Proposals that do not meet the mandatory minimum requirements shall be eliminated from the competition. (Pass/Fail)

- 1) Offeror must provide UEI and active SAM registration.
- 2) Offeror must provide local VAT registration number (if applicable) and demonstrate they have a clear understanding of the local VAT requirements applicable under this contract.
- 3) Offeror must provide proof of authorization to perform in the country of performance or provide thorough description of how it will be obtained.
- 4) Offeror must provide price information as required in [Section L Price Proposal](#)
- 5) Offeror must provide Grounds Maintenance Plan as described in [Section C.2.3.5](#).

Phase 2 - Technical Evaluation:

Those proposals remaining after the initial evaluation and evaluation of Phase 1 will be thoroughly reviewed to determine technical acceptability.

Technical Acceptability will include a review of each element of the Technical Proposal identified in [Section L](#).

(A) Technical Capability

(B) Key Personnel

(C) Experience and Past Performance

(A) Technical Capability

The Government will evaluate the technical capability to review the relevant certifications (e.g., horticulture, sustainable landscaping), technical approach to design, planting, maintenance, and seasonal planning, skilled labor and equipment (see [F.5. Materials and Equipment](#)), access to specialized materials (native plants, organic soil, sustainable inputs), capacity to meet project timelines with available resources, and that the contractor has demonstrated a clear understanding of the Scope of Work.

(B) Key Personnel

The Government will evaluate the key personnel. The review will include a review of the qualifications of the proposed staff and their range of experience and knowledge.

(C) Experience and Past Performance

The Government will evaluate the projects or contracts provided to evaluate both experience and past performance. Experience pertains to the types of work and volume of work previously or currently being performed by the contractor that are comparable to the types of work envisioned by this requirement in terms of size, scope and complexity. Past performance relates to how well a contractor has performed. The Government may contact references to verify experience and past performance. If the Government is aware of contracts that meet the requirements of this solicitation but have not been included in the projects submitted, it may evaluate those contracts in addition to those submitted.

M.1.2.4 Responsibility evaluation

Contractor responsibility will be determined by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1.

M.4. Award Selection

The prices of all technically acceptable firms will then be reviewed, and the award selection will go to the responsible offeror who provides the best value to the government. Such offer may not necessarily be the one offering the lowest price or receiving the highest non-price rating. An award notification will be published on SAM.gov. A brief explanation of the basis for award shall be provided upon request.

(End of the Solicitation)